

# Florida Record Sealing & Expunction

## Agent Training Reference

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A complete operational knowledge base for clearing criminal records in Florida: the FDLE Certificate-of-Eligibility process, court-ordered SEALING (§ 943.059) and EXPUNCTION (§ 943.0585), automatic sealing (§ 943.0595), and the administrative, lawful-self-defense, human-trafficking, and juvenile relief routes — all under Chapter 943, Florida Statutes.

| Coverage                   | State of Florida (FDLE for the Certificate of Eligibility; the circuit/county court where the arrest occurred for the order) |
|----------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>Primary statutes</b>    | § 943.059 (sealing); § 943.0585 (expunction); § 943.0584 (disqualifying offenses); § 943.0595 (automatic sealing)            |
| <b>Controlling changes</b> | 2019 amendment grouping same-incident arrests; 2023 HB 593 automatic-sealing expansion (§ 943.0595)                          |
| <b>Document type</b>       | Internal training / retrieval reference — not legal advice                                                                   |
| <b>Currency</b>            | Reflects law as of mid-2026, including the automatic-sealing expansion                                                       |

### VERIFY BEFORE RELYING

Florida draws two lines the agent must never blur. First, SEALING (§ 943.059) hides a record from the public while government agencies still see it; EXPUNCTION (§ 943.0585) destroys it (FDLE keeps only a confidential notation) and the person may generally deny it occurred. Second, almost all relief is a TWO-STEP process: the person must first obtain a Certificate of Eligibility from FDLE (\$75, valid 12 months), and THEN petition the court — and the certificate does NOT guarantee the court will grant the order. Relief is generally ONCE PER LIFETIME. The disqualifying-offense list in § 943.0584 bars relief even when adjudication was withheld. The agent must verify the current statute, the § 943.0584 list, and eligibility before relying.

## How the agent should use this document

Florida clears adult records by SEALING or EXPUNCTION, and the agent routes by disposition and goal. The threshold question is adjudication: if the person was ADJUDICATED GUILTY of anything, anywhere, the record is generally ineligible. If adjudication was WITHHELD (and the offense is not on the § 943.0584 list), the record can be SEALED; if all charges were DISMISSED / dropped / not filed (and the state attorney certifies for expunction), the record can be EXPUNGED. The agent should (1) confirm no adjudication of guilt and no prior seal/expunge; (2) check the § 943.0584 disqualifier list; (3) determine seal vs. expunge by disposition; and (4) run the FDLE Certificate-of-Eligibility step before the court petition.

### CONTENTS

1. Eligibility rules (seal vs. expunge; the relief types)
2. Waiting periods
3. Disqualifying / ineligible offenses (§ 943.0584)
4. Case outcome rules
5. Required forms
6. Filing instructions (the two-step process)
7. Court-specific quirks

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8. Fee information
9. Criminal history (FDLE) request process
10. Sample petitions and completed examples

participant/case info review zone  
Statutory shorthand used throughout

| Term                                    | Meaning                                                                                                                                       |
|-----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Sealing (§ 943.059)</b>              | Record hidden from public; government/criminal-justice agencies retain access; available where adjudication was withheld                      |
| <b>Expunction (§ 943.0585)</b>          | Record physically destroyed; FDLE keeps a confidential notation; available where charges were dismissed/dropped (state attorney must certify) |
| <b>Certificate of Eligibility (COE)</b> | FDLE document confirming statutory eligibility to petition the court; \$75, valid 12 months; required FIRST step                              |
| <b>Withhold of adjudication</b>         | Court withholds a formal conviction; NOT a conviction, and the gateway to sealing                                                             |
| <b>Adjudication of guilt</b>            | A conviction; one anywhere generally bars sealing and expunction                                                                              |
| <b>Automatic sealing (§ 943.0595)</b>   | Sealing by operation of law when the clerk submits a qualifying disposition; same effect as court-ordered sealing                             |
| <b>§ 943.0584 list</b>                  | Statutory disqualifying offenses (sexual, violent, trafficking, etc.) that bar relief even with a withhold                                    |
| <b>FDLE</b>                             | Florida Department of Law Enforcement — issues the COE and maintains the state criminal history                                               |

## 1. Eligibility rules

*Routed by disposition, with several distinct relief types under Chapter 943.*

**Court-ordered sealing (§ 943.059).** Available where adjudication was WITHHELD (no conviction), the person has never been adjudicated guilty of any offense (or delinquent for a felony/specified misdemeanor) in any jurisdiction, has no prior seal/expunge, and the offense is not on the § 943.0584 list. Sealing hides the record from the public; government agencies retain access.

**Court-ordered expunction (§ 943.0585).** Available where the charges were DISMISSED, dropped, not filed, or otherwise resolved without adjudication AND the state attorney/statewide prosecutor certifies eligibility, OR where a record has been sealed for 10 years and is otherwise eligible. Expunction destroys the record; FDLE retains only a confidential notation. Same lifetime and § 943.0584 limits apply.

**Other relief types.** ADMINISTRATIVE expunction (§ 943.0581) for an arrest made contrary to law or by mistake; LAWFUL SELF-DEFENSE expunction (§ 943.0578) where the state attorney certifies self-defense and charges were not filed or were dismissed; HUMAN-TRAFFICKING expunction (§ 943.0583) for victims; AUTOMATIC sealing (§ 943.0595) by operation of law; and JUVENILE routes (§§ 943.0515, 943.0582 diversion expunction).

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**AGENT GUIDANCE**

Start with adjudication: ANY adjudication of guilt (anywhere, ever) generally bars sealing AND expunction. A WITHHOLD opens sealing; a DISMISSAL opens expunction.

Relief is generally ONCE PER LIFETIME under §§ 943.059 / 943.0585 — confirm the person has never sealed or expunged a Florida record before.

## 2. Waiting periods

*Florida's gate is disposition and completion of supervision, not a fixed conviction-free clock; the one true waiting period is the 10-year seal-then-expunge bridge.*

| Disposition / route                                 | Remedy                                 | Timing                                   |
|-----------------------------------------------------|----------------------------------------|------------------------------------------|
| <b>Charges dismissed / dropped / not filed</b>      | Expunction (§ 943.0585)                | After supervision complete; SA certifies |
| <b>Adjudication withheld (not § 943.0584)</b>       | Sealing (§ 943.059)                    | After supervision complete               |
| <b>Record sealed under § 943.059</b>                | Then expunction                        | After 10 years sealed                    |
| <b>Arrest contrary to law / by mistake</b>          | Administrative expunction (§ 943.0581) | On FDLE application                      |
| <b>Lawful self-defense, no charges/dismissed</b>    | Self-defense expunction (§ 943.0578)   | On SA certification                      |
| <b>Qualifying disposition (dismissal/acquittal)</b> | Automatic sealing (§ 943.0595)         | By operation of law                      |
| <b>Certificate of Eligibility (FDLE)</b>            | Prerequisite to petition               | Valid 12 months once issued              |

There is no general conviction-free waiting period because Florida relief turns on the absence of an adjudication of guilt rather than the passage of time. The person must have completed all court supervision for the arrest at issue. The signature waiting period is the 10-year bridge: a record initially ineligible for expunction (because adjudication was withheld) may become expungeable after it has been SEALED for 10 years. The FDLE Certificate of Eligibility, once issued, is valid for 12 months.

**AGENT GUIDANCE**

Don't look for a fixed conviction-free clock — the gate is 'no adjudication of guilt' plus completed supervision. The one real wait is the 10-year seal-then-expunge bridge.

The COE expires 12 months after issuance — file the court petition within that window or the certificate must be renewed.

## 3. Disqualifying / ineligible offenses

*Two kinds of bar: a record-level bar (any adjudication of guilt) and an offense-level bar (the § 943.0584 list).*

**Record-level bars.** Any adjudication of guilt as an adult for any criminal offense or comparable ordinance violation (in any jurisdiction); any juvenile adjudication of delinquency for a felony or specified misdemeanor; incomplete court supervision; a prior Florida seal/expunge; or being a defendant in a pending case.

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**Offense-level bars (§ 943.0584) — ineligible even when adjudication was withheld:**

Sexual offenses and offenses requiring sex-offender/predator registration (e.g., Ch. 794, §§ 800.04, 827.071, 847.0133/0135/0145).

Violent and trafficking offenses enumerated under § 907.041 and drug trafficking (§ 893.135).

Abuse of an elderly person or disabled adult (§ 825.1025); offenses against vulnerable persons.

Acts of domestic violence, child abuse, kidnapping/false imprisonment of a minor (§ 787.025), and related enumerated crimes.

Communications-fraud / scheme offenses (§ 817.034) and other specifically listed statutes.

#### VERIFY BEFORE RELYING

The § 943.0584 disqualifying-offense list is long and enumerated by statute section, and it bars sealing and expunction even after a 10-year seal and even where adjudication was withheld. The agent must map the specific offense to its statute and confirm it is not on the § 943.0584 list, in addition to checking the record-level bars, before declaring eligibility.

## 4. Case outcome rules

*Disposition determines whether the route is sealing, expunction, or neither. This is the agent's primary routing logic for Florida.*

| Case outcome                                  | Route                     | Channel            | Note                  |
|-----------------------------------------------|---------------------------|--------------------|-----------------------|
| <b>Dismissed / nolle prosequi / not filed</b> | Expunction (§ 943.0585)   | FDLE COE → court   | SA certifies          |
| <b>Acquittal (not guilty)</b>                 | Expunction; auto-seal     | Court / § 943.0595 | If not § 943.0584     |
| <b>Adjudication withheld</b>                  | Sealing (§ 943.059)       | FDLE COE → court   | If not § 943.0584     |
| <b>Sealed 10 years</b>                        | Expunction                | FDLE COE → court   | If otherwise eligible |
| <b>Arrest by mistake / contrary to law</b>    | Administrative expunction | FDLE (§ 943.0581)  | No court needed       |
| <b>Lawful self-defense</b>                    | Self-defense expunction   | FDLE (§ 943.0578)  | SA certifies          |
| <b>Adjudicated guilty (any jurisdiction)</b>  | Not eligible              | —                  | Record-level bar      |
| <b>Offense on § 943.0584 list</b>             | Not eligible              | —                  | Even with withhold    |

Effect of relief: a SEALED record is removed from public view but remains accessible to criminal-justice and certain licensing agencies; an EXPUNGED record is destroyed by all agencies, with FDLE keeping only a confidential notation that a record existed, and the person may lawfully deny the arrest in most circumstances (with narrow exceptions for law-enforcement employment, Bar admission, and certain licensing). Multiple arrests from the SAME incident may be grouped in one petition at the court's discretion.

#### AGENT GUIDANCE

Match disposition to route: dismissal → expunction; withhold → sealing; guilty → neither. Then screen against § 943.0584. Tell users plainly: sealing hides, expunction destroys; both are once per lifetime; same-incident arrests can sometimes be grouped.

## 5. Required forms

*Florida uses an FDLE application first, then court pleadings under the Rules of Criminal Procedure.*

| Form / channel                                         | Use                                                                                                                                                 |
|--------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>FDLE Application for Certificate of Eligibility</b> | The required first step; submitted with fingerprints, a certified disposition, and the \$75 fee. State attorney completes Section B for expunction. |
| <b>Certificate of Eligibility (issued by FDLE)</b>     | FDLE's determination of statutory eligibility; valid 12 months; must accompany the court petition.                                                  |
| <b>Petition to Seal / Expunge</b>                      | Court pleading under Fla. R. Crim. P. 3.692 and § 943.059 / § 943.0585, filed in the circuit/county court where the arrest occurred.                |
| <b>Affidavit in support</b>                            | Sworn affidavit accompanying the petition, attesting to eligibility.                                                                                |
| <b>Proposed Order to Seal / Expunge</b>                | Fla. R. Crim. P. 3.989 form order for the judge's signature.                                                                                        |

The FDLE application page must be completed in full (name, DOB, race, sex, addresses, arresting agency, date of arrest, charges) and include fingerprints and a certified disposition. For EXPUNCTION the state attorney or statewide prosecutor must complete the certification section; if it is not completed, FDLE processes the request as a SEALING. After the COE issues, the petition, affidavit, and proposed order are filed with the court.

### AGENT GUIDANCE

Sequence matters: FDLE application + fingerprints + certified disposition + \$75 FIRST; the court petition, affidavit, and proposed order come only AFTER the COE issues.

For expunction, make sure the state attorney completes the certification — without it FDLE downgrades the request to a sealing.

## 6. Filing instructions

*Florida relief is a strict two-step: FDLE Certificate of Eligibility, then a court petition.*

- 1. Confirm eligibility.** No adjudication of guilt anywhere; supervision complete; no prior seal/expunge; offense not on the § 943.0584 list; correct route (seal vs. expunge) by disposition.
- 2. Get the disposition and prints.** Obtain a certified copy of the final disposition and a fingerprint card.
- 3. FDLE application.** Complete the FDLE Application for a Certificate of Eligibility; for expunction have the state attorney complete the certification; submit with the certified disposition, fingerprints, and \$75 fee.
- 4. Receive the COE.** FDLE issues the Certificate of Eligibility (valid 12 months). The COE confirms eligibility to petition — it is NOT itself the sealing/expunction order.
- 5. File the court petition.** File the Petition to Seal/Expunge, sworn affidavit, the COE, and a proposed order in the circuit/county court where the arrest occurred, under Fla. R. Crim. P. 3.692.
- 6. Court decision.** The court may grant or deny in its discretion even with a valid COE; on a granted order, FDLE and other agencies seal or destroy the records.

### AGENT GUIDANCE

Drill the two-step: a Certificate of Eligibility is necessary but NOT sufficient — the court can still deny.

Venue is the court where the arrest occurred; file within the COE's 12-month validity window.

## 7. Court-specific quirks

*The features most likely to surprise.*

**Seal vs. expunge is the core distinction.** Sealing hides (government still sees); expunction destroys (FDLE keeps a confidential notation). Disposition decides which: withhold → seal, dismissal → expunge.

**Two-step process.** FDLE Certificate of Eligibility FIRST, then the court petition. The COE does not guarantee the order — the judge has discretion.

**Once per lifetime.** Generally one seal or expunge per person under §§ 943.059 / 943.0585; same-incident arrests may be grouped at the court's discretion.

**Any adjudication of guilt is fatal.** A single conviction anywhere, ever (even unrelated), bars relief. A WITHHOLD is not a conviction.

**The § 943.0584 list bars relief even with a withhold** — and even after a 10-year seal.

**The 10-year bridge.** A withhold-of-adjudication record can be sealed, then expunged after 10 years sealed if otherwise eligible.

**Automatic sealing exists** (§ 943.0595) for qualifying dismissals/acquittals by operation of law — but verify it actually occurred.

**Criminal traffic counts.** DUI, reckless driving, and certain DWLS are criminal and can disqualify; a DUI conviction itself is not sealable/expungeable.

### AGENT GUIDANCE

Lead every Florida analysis with two screens: (1) any adjudication of guilt anywhere? and (2) is the offense on the § 943.0584 list? Those two decide most cases before timing even matters.

Frame relief as two steps and once-per-lifetime so users plan the single shot carefully.

## 8. Fee information

*The core cost is the FDLE processing fee; court and certified-copy costs vary by county.*

| Item                                          | Amount                | Note                                              |
|-----------------------------------------------|-----------------------|---------------------------------------------------|
| <b>FDLE Certificate of Eligibility</b>        | \$75                  | Money order to FDLE; executive director may waive |
| <b>Automatic sealing (§ 943.0595)</b>         | \$0                   | By operation of law; no application               |
| <b>Administrative expunction (§ 943.0581)</b> | Typically no FDLE fee | Arrest by mistake / contrary to law               |
| <b>Certified disposition / fingerprints</b>   | Varies                | Clerk and law-enforcement fees                    |
| <b>Court filing</b>                           | Varies by county      | Some petitions filed without a separate fee       |
| <b>Attorney fees (if represented)</b>         | Varies                | Not required; clinics and legal aid assist        |

**VERIFY BEFORE RELYING**

The \$75 FDLE fee, county court costs, and certified-copy/fingerprint fees can change, and fee waivers are available in limited circumstances; the agent should verify the current FDLE fee and any county court costs at the time of advising rather than quoting fixed figures from memory.

## 9. Criminal history (FDLE) request process

*Reviewing the record first confirms each disposition, whether adjudication was withheld, and whether any offense is on the § 943.0584 list.*

**A. State history — FDLE.** The Florida Department of Law Enforcement maintains the official state criminal history and issues the Certificate of Eligibility. A Personal Review of one's own FDLE record confirms dispositions before applying.

**B. Court / clerk record.** The clerk of the circuit court supplies the certified disposition the FDLE application requires and is where the petition is later filed.

**C. Federal — FBI Identity History Summary.** For records that may extend beyond Florida, the FBI fingerprint-based summary is the federal equivalent; Florida relief reaches Florida records only.

**AGENT GUIDANCE**

Order a certified disposition from the clerk and (if useful) an FDLE Personal Review before applying — they confirm the withhold-vs-adjudication status the whole analysis turns on.

## 10. Sample petitions and completed examples

*Florida relief is filed on court pleadings after the FDLE certificate issues. Names, dates, and identifiers below are fictional and illustrative.*

### Example A — Petition to Seal (Fla. R. Crim. P. 3.692; § 943.059)

IN THE CIRCUIT COURT, FOURTH JUDICIAL CIRCUIT, DUVAL COUNTY, FL  
IN RE: THE PETITION OF MARIA T. ALVAREZ Case No. 16-2018-CF-XXXXXX  
PETITION TO SEAL CRIMINAL HISTORY RECORD (943.059)

1. Petitioner: Maria T. Alvarez; DOB 11/30/1990.
2. Petitioner was arrested on 08/14/2018 by the Jacksonville Sheriff's Office for possession of a controlled substance.
3. Adjudication was WITHHELD; petitioner was never adjudicated guilty of this or any offense in any jurisdiction.
4. The offense is NOT listed in s. 943.0584.
5. Petitioner has completed all court supervision and has no prior sealing or expunction in Florida.
6. A Certificate of Eligibility issued by FDLE (valid 12 months) is attached.

WHEREFORE petitioner asks the Court to order the sealing of all criminal history record information concerning this arrest, pursuant to s. 943.059 and Fla. R. Crim. P. 3.692.

### Examples B, C & D — Other routes

B. PETITION TO EXPUNGE (943.0585) -- DISMISSED CHARGES:  
Where charges were dismissed / not filed and the state attorney certifies eligibility, the same two-step applies (FDLE COE first), and the order DESTROYS the record (FDLE

keeps only a confidential notation).

C. THE 10-YEAR BRIDGE:

A withhold-of-adjudication record sealed under 943.059 may be expunged after it has been sealed for 10 years, if otherwise eligible and not on the 943.0584 list.

D. AUTOMATIC SEALING (943.0595):

When the clerk submits a qualifying certified disposition (e.g., all counts dismissed or an acquittal), the FDLE record is sealed by operation of law -- no application, same effect as a court-ordered seal. Verify it occurred.

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This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Florida statutes and common practice and is not legal advice. Florida clears records by SEALING (§ 943.059) and EXPUNCTION (§ 943.0585) through a two-step FDLE-then-court process, with automatic sealing under § 943.0595 and a disqualifying-offense list in § 943.0584. The agent must verify the current statutory text, the § 943.0584 list, the eligibility and once-per-lifetime rules, the FDLE Certificate-of-Eligibility process and fee, and the court's discretion before relying on any rule here.